

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE**

Complaint for Declaratory and Injunctive Relief Under FOIA

Filed: April 7, 2025 **Synthetic docket:** SYN-DMD-25-CV-0914 **Court:** Fictional United States District Court for the District of Maryland

Open Grid Archive brings this action against the United States Department of Energy under the Freedom of Information Act, 5 U.S.C. § 552. The suit challenges the withholding of portions of twelve fictional records concerning the Grid Sentinel playbook suite. It does not seek any live technical data, real infrastructure information, credential, actual incident record, or personal contact information.

DOE produced 146 page images from a 200-page responsive universe and withheld fifty-four pages in full. It invoked Exemption 7(E) for nonpublic decision conditions, sequencing, and branches, and invoked Exemption 7(F) for broad categories of role, contact, safety, and escalation fields. Open Grid alleges that the agency's public explanations do not justify every application of those exemptions and do not establish that all reasonably segregable material was released.

The plaintiff seeks a declaration of its statutory rights, an order requiring adequate justification and release of nonexempt portions, and other relief authorized by FOIA. All names, records, identifiers, and events pleaded here are fictional exercise material.

Parties, Jurisdiction, and Venue

Plaintiff Open Grid Archive is a fictional nonprofit organized in Maryland. It gathers public records, applies editorial judgment, and distributes explanatory material about government administration. Nila Quen is its executive director. Open Grid submitted and administratively appealed the request at issue.

Defendant United States Department of Energy is a federal agency subject to FOIA. For this synthetic matter, the fictional Office of Resilience Exercise Records received and processed the request, and the fictional Office of Public Access Review decided the administrative appeal. The named offices and their personnel are exercise constructs, not representations of actual agency organization.

This Court has subject-matter jurisdiction under 5 U.S.C. § 552(a)(4)(B) and 28 U.S.C. § 1331. FOIA authorizes a district court to enjoin an agency from withholding records and to order production of records improperly withheld. Open Grid alleges that it exhausted administrative remedies when the agency issued final decision FAD-OG-1007 on October 7, 2024.

Venue is alleged to be proper in this fictional district because Open Grid resides in Maryland. The case presents no claim for damages and no challenge to an actual cyber program. Service will be made through the fictional exercise channels designated for this docket.

The Request and Clarified Scope

On June 3, 2024, Open Grid requested final and superseded Grid Sentinel records effective between January 1, 2022, and May 31, 2024. It identified three playbook families—Operational Decision Tree, Cyber-Incident Escalation Matrix, and Response-Coordination Appendix—and sought associated final approval and supersession records.

The request excluded drafts, comments, ordinary email, individual incident reports, raw alerts, system configurations, source code, credentials, access-control data, maps of real infrastructure, and personal contact fields. Open Grid asked for electronic delivery, record-specific exemption explanations, foreseeable-harm analysis, and release of reasonably segregable administrative text.

DOE assigned tracking number DOE-FOIA-2024-OG-041 on June 10. The parties exchanged written clarification on June 14, June 18, and June 21. They agreed that one authoritative copy of duplicate content would suffice, a final exercise edition could qualify, and correspondence was limited to final approval or supersession instruments. An edition was responsive if effective for any portion of the date range.

DOE accepted the clarified boundary under reference CLR-OG-0621. The agreement narrowed collection but did not concede that an otherwise responsive title, revision history, heading, or general description was exempt.

Search and Initial Response

DOE reported that it searched the fictional Beacon, Driftglass, and Harborline repositories. According to its response, 16,842 raw hits were reduced to 1,284 deduplicated candidates, forty-six candidates received custodian review, and twelve records totaling 200 pages were found responsive. Open Grid does not presently allege that those search steps were unreasonable.

On August 16, 2024, DOE issued its initial determination and production RLS-OG-001. Two governance records totaling twenty-two pages were released in full. Seven playbook records totaling 124 pages were released in part. Three operational records totaling fifty-four pages were withheld in full. The agency transmitted 146 page images, sixty-eight without blackout and seventy-eight carrying one or more redactions.

DOE stated that sixty-two of the redacted page images cited 7(E), fifty-one cited 7(F), and thirty-five cited both. It further stated that all fifty-four fully withheld pages cited 7(E), with thirty-nine also citing 7(F). Those totals identify overlap but do not disclose how each asserted harm corresponds to each retained passage.

The decision granted a fee waiver. Open Grid challenges withholding and segregability, not fee classification or the arithmetic of the initial collection.

Administrative Appeal and Exhaustion

Open Grid filed administrative appeal DOE-APR-2024-OG-017 on August 30, 2024. The appeal accepted the narrowed scope and search figures. It argued that DOE had not adequately distinguished techniques or procedures from guidelines, connected every categorical 7(F) field to a reasonable danger, or explained why nonoperational text could not be separated.

The fictional Office of Public Access Review accepted the appeal on September 6. Its record included the request, clarification, initial decision, production, manifest, withheld-record descriptions, appeal submission, and a confidential component statement. The appeal office did not identify an additional responsive record or change the page accounting.

On October 7, 2024, final decision FAD-OG-1007 denied the appeal. The decision accepted a law-enforcement purpose and sustained 7(E) for decision conditions, implementation order, and related branches. It also accepted a single 7(F) category covering fictional duty roles, contact channels, safety references, and escalation positions.

The appeal decision credited DOE's statement that each page was reviewed and concluded that no further reasonably segregable information had been identified. It did not provide the requested line-by-line account. The decision notified Open Grid of judicial review, completing the administrative process challenged here.

Exemption 7(E) Allegations

Open Grid does not allege that every redaction under 7(E) is improper. An approved operational decision tree can contain nonpublic implementation detail, and the plaintiff does not seek any genuine trigger order, protected condition, or functional sequence that satisfies the statute. The dispute is whether DOE has shown that each withheld portion falls within the exemption.

The public decision describes both techniques or procedures and guidelines but often assigns them one undifferentiated rationale. For guidelines, DOE must address the statutory circumvention condition. For a known general technique, it must identify the nonpublic implementation detail at issue without revealing that detail. The agency's category-level statements do not establish that document-control fields, descriptive legends, and general administrative directions share the protected character of operational branches.

DOE withheld three records in full even though the released governance material and redacted playbooks show that Grid Sentinel records use distinct title blocks, revision histories, approval entries, and section headings. Open Grid alleges that at least some such material can be described and disclosed without reconstructing decision logic.

The agency bears the burden in this action. A court may rely on declarations and an index only if they provide a sufficiently specific factual basis for de novo review.

Exemption 7(F) Allegations

DOE applied 7(F) to categories labeled duty role, contact channel, safety reference, and escalation position. The plaintiff does not contend that the agency must name a threatened person. It alleges instead that DOE must demonstrate a reasonable expectation that releasing the disputed information would endanger some individual's life or physical safety.

The initial and appeal decisions treat the presence of a safety-related label as the necessary causal explanation. They do not distinguish an inert role heading from a protected contact value or identify why every generic coordination descriptor presents the same risk. Thirty-nine fully withheld pages and fifty-one produced pages carry a 7(F) assertion, yet the public account supplies no record-level differentiation among them.

Open Grid expressly disclaims any request for real names, telephone numbers, physical locations, facility layouts, or live response assignments. Its challenge can be resolved by release of harmless administrative words, narrower redaction, or an adequate explanation showing why a particular field cannot be disclosed.

Categorical proof may be appropriate when meaningful functional groups follow document-by-document review and the agency connects each group to the protected interest. Open Grid alleges that DOE's broad labels and repeated harm language do not meet that standard for all withheld matter.

Segregability and Foreseeable Harm Allegations

FOIA requires release of reasonably segregable nonexempt information after exempt portions are deleted. DOE states that reviewers examined each page, but its public explanation offers a collective conclusion. It does not specify which administrative passages were tested, why separation would leave meaningless fragments, or how disclosure of a revision field would reveal an operational sequence.

The produced pages show document structures capable of separation. Titles, approval status, effective dates, version markers, general statements of purpose, revision explanations, and neutral coordination headings can exist apart from protected values. Administrative text already visible in the partial productions demonstrates that the agency's initial assertion is not self-proving and must be tested against the structure of each record.

DOE also must reasonably foresee harm to an interest protected by the invoked exemption or identify a legal prohibition on disclosure. A harm prediction tied to operational logic does not automatically extend to every word in the same record. A physical-safety prediction tied to a contact or placement does not automatically cover a nonidentifying section label.

Open Grid alleges that the agency's generalized foreseeable-harm statements and segregability conclusions cannot sustain summary judgment without more specific evidence.

Claims for Relief

Count One—Improper Withholding. Open Grid incorporates the preceding allegations. DOE has withheld agency records responsive to a perfected FOIA request. To the extent the withheld material is not protected by 7(E), 7(F), or another properly supported exemption, the withholding violates 5 U.S.C. § 552.

Count Two—Failure to Release Reasonably Segregable Portions. DOE has not demonstrated that all nonexempt information was released after deletion of exempt matter. Its categorical declaration and appeal decision do not resolve the separability of administrative and descriptive text within the three fully withheld and seven partially released records.

Count Three—Inadequate Supporting Basis. The public explanations do not correlate every functional category with a particular statutory requirement and foreseeable harm. Open Grid seeks a record-specific basis sufficient for adversarial testing and judicial review, not disclosure through the explanation itself.

No count challenges DOE's ability to protect genuinely exempt operational implementation detail. No count requests an order compelling creation of a record, alteration of a real system, or disclosure of excluded incident material. The controversy concerns only the synthetic twelve-record collection processed under the identified request.

Prayer for Relief and Jury Demand

Open Grid asks the Court to declare that DOE may withhold only material for which it carries the statutory burden; order the agency to provide an adequate record-specific justification; review disputed material in camera if necessary; direct release of all reasonably segregable nonexempt portions; enjoin continued improper withholding; award reasonable fees and costs if authorized; and grant other lawful relief appropriate to this FOIA action.

The plaintiff does not demand a jury because FOIA relief is decided by the Court. Open Grid requests a schedule that allows DOE to file declarations and a sufficiently specific index while protecting any information legitimately submitted under seal. If sealed material is used, the plaintiff asks for public redacted counterparts and the narrowest closure consistent with a supported interest.

The complaint is signed on April 7, 2025, by fictional counsel Tamsin Roe and Leo Marr for Open Grid Archive. Service is certified through the synthetic docket on the fictional institutional respondent and designated exercise counsel. No signature, address, bar number, or service endpoint corresponds to a real person or office.

Tamsin Roe and **Leo Marr** Fictional counsel for Open Grid Archive